

24STCV24192 24STCV24192

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Case Number: 24STCV24192 Hearing Date: August 14, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 14, 2026

CASE NUMBER

24STCV24192

MOTION

Motion to Compel Second Session of Deposition

MOVING PARTIES

Defendants FPI Management, Inc. and Thurman Interim
California, LLC

OPPOSING PARTY

Plaintiff Ana Batz Tunay

MOTION

Defendants

FPI Management, Inc. ("FPI Management") and Thurman Interim California, LLC ("Thurman," collectively, "Defendants") move to compel Plaintiff Ana Batz Tunay ("Plaintiff"), one of five Plaintiffs in this habitability action, to sit for an additional session of deposition for up to five hours. Plaintiff opposes the motion.

ANALYSIS

Pursuant to Code of Civil Procedure, section 2025.290, subdivision (a), "a deposition examination of the witness by all counsel, other than the witness' counsel of record, shall be limited to seven hours of total testimony."

Plaintiff sat for two sessions of deposition, on April 1 and April 6, 2026. Together, the sessions totaled six hours and 50 minutes. The deposition proceeded with a Spanish interpreter in accordance with Plaintiff's request, as Plaintiff is from Guatemala. The use of an interpreter necessarily extends the time for questions and answers at deposition. Furthermore, at both sessions, Thurman's counsel questioned Plaintiff, and FPI Management's counsel did not have the opportunity to do so.

In opposition, Plaintiff argues Defendants may obtain responsive information from other Plaintiffs. This is immaterial. Each Plaintiff asserts individual claims in this matter. Defendants are entitled to conduct depositions of each Plaintiff and obtain responsive information regarding each of their individual claims.

Plaintiff also contends Defendants could have questioned Plaintiff more at the first session of deposition but instead elected to conduct a second session of deposition up to the seven-hour limit and then file this motion. This is also immaterial. Plaintiff does not dispute Plaintiff would not stipulate to exceed the seven-hour limit. As such, Defendants' motion was necessary regardless of whether Defendants conducted one or two previous sessions to reach the seven-hour limit.

The Court finds the time the interpreter's

work consumed at the first two sessions of deposition, the inability of FPI Management's counsel to complete her questioning of Plaintiff, Thurman not having an opportunity to ask any questions, and the nature and breath of Plaintiff's individual claims, warrants an additional deposition session.

Accordingly, the motion is granted. Defendants may conduct an additional session of the deposition not to exceed five hours of time devoted to questions from both Defendants, however split between them, and not to be conducted over more than one sitting.

CONCLUSION AND ORDER

Plaintiff is to sit for this additional deposition session within 30 days of the issuance of this order, unless Defendants stipulate otherwise.

Defendants are to provide notice of the Court's ruling and to file proof of service of same.